

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

SHAIQUAN WILSON

Plaintiff,

-against-

Index No:
Summons

**THE CITY OF NEW YORK, POLICE OFFICER
GASPERETTI OF PATROL BORO QUEENS SOUTH,
TAX REG#: 950480, POLICE OFFICER JASON
BERNFELD OF PATROL BORO QUEENS SOUTH,
TAX REG#: 950074 POLICE COMMISSIONER
RAYMOND KELLY, AND POLICE OFFICER
JOHN AND/OR JANE DOE NUMBERS 1-50**

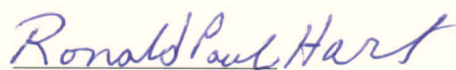
Defendants.

X

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve the plaintiff a copy of your answer, or, if the complaint is served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20) days after service, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York) and in case of your failure to appear or answer the Plaintiff's complaint, judgment will be taken against you by default for the relief demanded therein.

Plaintiff designates Queens County as the place of venue based on occurrence of the incident.

Dated: New York, NY 10007
May 6, 2013



Ronald Paul Hart, Esq.
Attorney for the PLAINTIFF
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

SHAIQUAN WILSON

X

Plaintiff,

-against-

Index No:
COMPLAINT

**THE CITY OF NEW YORK, POLICE OFFICER
GASPERETTI OF PATROL BORO QUEENS SOUTH,
TAX REG#: 950480, POLICE OFFICER JASON
BERNFELD OF PATROL BORO QUEENS SOUTH,
TAX REG#: 950074 AND POLICE OFFICERS
JOHN AND/OR JANE DOE NUMBERS 1-50**

Defendants.

X

NOW COMES the Plaintiff, **SHAIQUAN WILSON**, by and through his attorney,
RONALD PAUL HART, ESQ., as and for his complaint against the Defendants, and
respectfully shows to this Court and allege as follows:

PARTIES

1) That the Plaintiff, **SHAIQUAN WILSON** (Hereinafter "Plaintiff"), is presently a
resident of the City and State of New York.

2) At the time of the occurrence of the incident, Defendant **POLICE OFFICER
GASPERETTI BORO QUEENS SOUTH, TAX REG#: 950480**, was and still is a resident of
the City of New York.

3) At the time of the occurrence of the incident, Defendant, **POLICE OFFICER JASON
BERNFELD OF PATROL BORO QUEENS SOUTH, TAX REG#: 950074** was
and still is a resident of the City of New York.

4) Upon information and belief, that at all times, hereinafter mentioned, the Defendant,

5) **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

6) Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, its agents, servants and employees operated, maintained and controlled the Police Department of The City of New York, and all the police officers thereof, including defendant Police Officers **JOHN/JANE DOES 1-50**.

7) Upon information and belief, at all times hereinafter mentioned, and on or prior to October 25th, 2012, Defendants, Police Officers **JOHN/JANE DOES 1-50**, were employed by Defendant, **THE CITY OF NEW YORK**, as police officers.

8) This action arises both under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the united states, and under federal law, particularly the Civil Rights Acts, Title 42 of the United Code, Section 1983,1981, 1988, 1985(3) et seq. and state law for malicious prosecution, abuse of process, negligent infliction of emotional distress, negligent hiring, training, and supervision of police officers, permitting unlawful police practices, and racial discrimination, to name a few of the causes of action.

9) This action also arises under and the rights under the Constitution and laws of the State of New York.

10) Each and all of the acts of the Defendants alleged herein were done by the defendants, their agents, servants and employees, and each of them, as individuals and in their official capacities as police officers under the color and pretense State law, the statutes, ordinances, regulations, customs and usages of the State of New York, the **CITY OF NEW**

YORK and the County of new York, and under the authority of their office as police officers of said state, City and County.

11) The amount in controversy is **\$75,000.00** exclusive interest.

PENDANT STATE CLAIMS:

12) That Notice of Plaintiff's Claim for Damages for False arrest, violation of Civil rights, negligence in hiring and retaining, negligence in performance and negligence in training and supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller Defendant **THE CITY OF NEW YORK** on the **14th day of December 2012**.

13) That more than 30 days have elapsed since the Notice of Claim has been served upon Defendants **CITY OF NEW YORK** and other defendants and said Defendants have neglected to or refused to make any adjustments or payment thereof; hence, this action is commenced within one year and 90 days after the cause of action arose.

AS AND FOR FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAIQUAN WILSON
FALSE ARREST AND FALSE IMPRISONMENT:

14) The Plaintiff, **SHAIQUAN WILSON**, hereby incorporates by reference each and every preceding paragraph 1-13 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

15) That on or about October 25th, 2012, Plaintiff, **SHAIQUAN WILSON**, (Hereinafter "Plaintiff"), met up with his friends, Javon Morris and Darnell Anderseon on 164th Street and Jamaica Avenue.

16) They then proceeded to walk to the Kings Parks located on Jamaica between 150th and one 153rd Street to play basketball.

17) Plaintiff and friends were horse playing around on their way to the park. Once they arrived at the park they began walking towards the basketball court area.

18) Suddenly and without warning, approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

19) They yelled for them to get down and Plaintiff and his friends immediately complied.

20) Plaintiff, not knowing why he was being asked to get down by the officers simply asked the police officers what they had done and the police responded by saying, **"SHUT UP"**.

21) They then drove Plaintiff along with Javon Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where the Complainant, Terrence Payne, stated that they(Plaintiffs and his friends) were not the guys that had assaulted and/or robbed him.

22) One Police Officer asked, "Should we take them back to the park and let them go," and another Police Officers responded by saying, "No take them down to the 103rd Precinct."

23) Later on that night Complainant, Terrence Payne, under pressure from the police identified Plaintiff as the person who had assaulted him.

24) Plaintiff was thereupon arraigned on October 27th, 2012, and he was given a \$250,000 dollar bail which was later lowered to \$100,000 dollars cash over \$75,000 dollars bond. Plaintiff was thereupon remanded to the VCBC or the Boat prison. That is where he remained until November 7th, 2012, an additional 12 days when the Captain of the Boat/prison informed him that the charges were dismissed and he then and there free to go and was being released.

25) Plaintiff later found out that charges were dismissed because the Complainant recanted his statement which he had earlier told the police that the Plaintiff and his buddies were not involved.

26) The Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees causing the Plaintiff to spend almost two (2) weeks in prison needlessly for a crime the police Defendants were well aware he did not commit.

27) Because of Defendants' actions in causing Plaintiff to be falsely arrested and imprisoned for approximately two (2) weeks, Defendant has suffered great damage

28) That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body therefrom, were cause wholly and solely by reason of the negligence of the Defendants, their agents, servants, and employees without any negligence on the part of Plaintiff.

29) That the acts of the Defendants, their agents, servants and employees in failing to properly discipline, hire and train their employees, agents and servants presents a clear and present danger to the citizens of the City and State of New York.

30) That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered sick, sore, lame and so remains by the actions of the Defendants, their agents, servants and employees.

31) Plaintiff had all of his criminal charges dismissed on December 14th, 2011.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALFOF PLAINTIFF SHAIQUAN WILSON
NEGLIGENCE IN TRAINING AND SUPERVISING:

32) The Plaintiff, **SHAIQUAN WILSON**, hereby incorporates by reference each and every preceding paragraph 1-31 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

33) That on or about October 25th, 2012, Plaintiff, **SHAIQUAN WILSON**, (Hereinafter "Plaintiff"), met up with his friends, Javon Morris and Darnell Anderseon on 164th Street and Jamaica Avenue.

34) They then proceeded to walk to the Kings Parks located on Jamaica between 150th and one 153rd Street to play basketball.

35) Plaintiff and friends were horse playing around on their way to the park. Once they arrived at the park they began walking towards the basketball court area.

36) Suddenly and without warning, approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

37) They yelled for them to get down and Plaintiff and his friends immediately complied.

38) Plaintiff, not knowing why he was being asked to get down by the officers simply asked the police officers what they had done and the police responded by saying, "**SHUT UP**".

39) They then drove Plaintiff along with Javon Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where the Complainant, Terrence Payne, stated that they (Plaintiffs and his friends) were not the guys that had assaulted and/or robbed him.

40) One Police Officer asked, "Should we take them back to the park and let them go," and another Police Officers responded by saying, "No take them down to the 103rd Precinct."

41) Later on that night Complainant, Terrence Payne, under pressure from the police identified Plaintiff as the person who had assaulted him.

42) Plaintiff was thereupon arraigned on October 27th, 2012, and he was given a \$250,000 dollar bail which was later lowered to \$100,000 dollars cash over \$75,000 dollars bond. Plaintiff was thereupon remanded to the VCBC or the Boat prison. That is where he remained until November 7th, 2012, an additional 12 days when the Captain of the Boat/prison informed him that the charges were dismissed and he then and there free to go and was being released.

43) Plaintiff later found out that charges were dismissed because the Complainant recanted his statement which he had earlier told the police that the Plaintiff and his buddies were not involved.

44) The Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees causing the Plaintiff to spend almost two (2) weeks in prison needlessly for a crime the police Defendants were well aware he did not commit.

45) That the Defendant, **THE CITY OF NEW YORK**, their agents, servants, and employees, carelessly and recklessly failed to properly train and supervise their employees, in particular, the employees named Defendants Police officers **JOHN/JANE DOES 1-50** in that they failed to train their employees to control their tempers and exercise the proper deportment and temperament; and to otherwise act as reasonable, prudent police officers; failed to give them

proper instruction as to their deportment, behavior, and conduct as representatives of their employers; and, in that the Defendants, their agents, servants and employees were otherwise reckless, careless and negligent in the performance of their duties.

47) That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body there-from were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and employees without any negligence on the part of the Plaintiff.

48) That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAIQUAN WILSON
NEGLIGENCE IN PERFORMANCE OF DUTIES:

49) The Plaintiff, **SHAIQUAN WILSON**, hereby incorporates by reference each and every preceding paragraph 1-48 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

50) That on or about October 25th, 2012, Plaintiff, **SHAIQUAN WILSON**, (Hereinafter "Plaintiff"), met up with his friends, Javon Morris and Darnell Anderseon on 164th Street and Jamaica Avenue.

51) They then proceeded to walk to the Kings Parks located on Jamaica between 150th and one 153rd Street to play basketball.

52) Plaintiff and friends were horse playing around on their way to the park. Once they arrived at the park they began walking towards the basketball court area.

53) Suddenly and without warning, approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

54) They yelled for them to get down and Plaintiff and his friends immediately complied.

55) Plaintiff, not knowing why he was being asked to get down by the officers simply asked the police officers what they had done and the police responded by saying, **"SHUT UP"**.

56) They then drove Plaintiff along with Javon Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where the Complainant, Terrence Payne, stated that they(Plaintiffs and his friends) were not the guys that had assaulted and/or robbed him.

57) One Police Officer asked, "Should we take them back to the park and let them go," and another Police Officers responded by saying, "No take them down to the 103rd Precinct."

58) Later on that night Complainant, Terrence Payne, under pressure from the police identified Plaintiff as the person who had assaulted him.

59) Plaintiff was thereupon arraigned on October 27th, 2012, and he was given a \$250, 000 dollar bail which was later lowered to \$100,000 dollars cash over \$75,000 dollars bond. Plaintiff was thereupon remanded to the VCBC or the Boat prison. That is where he remained until November 7th, 2012, an additional 12 days when the Captain of the Boat/prison informed him that the charges were dismissed and he then and there free to go and was being released.

60) Plaintiff later found out that charges were dismissed because the Complainant recanted his statement which he had earlier told the police that the Plaintiff and his buddies were not involved.

61) The Defendant, their agents, servants and employees failed to adequately and properly

hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees causing the Plaintiff to spend almost two (2) weeks in prison needlessly for a crime the police Defendants were well aware he did not commit.

62) That on or about October 25th, 2012, Plaintiff, **SHAIQUAN WILSON** (Hereinafter "Plaintiff"), met up with, Javon Morris and Darnell Anderseon on 164th Street and Jamaica Avenue.

63) They then proceeded to walk to Kings Parks located on Jamaica between 150th and one 153rd Street to play basketball.

64) Plaintiff and friends was horse playing around on their way to the park. Once the police arrived at the park they began walking towards the basketball court area.

65) Approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

66) They yelled for them to get down, they complied. Plaintiff asked the officers what they had done and the police responded by saying, "**SHUT UP**".

67) The police then drove Plaintiff along with Javon Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where Complainant Terrence Payne stated that they were not the guys that had assaulted him just as he told them the first time around.

68) One Police Officer asked, "Should we take them back to the park and let them go," and another Police Officer responded by saying, "No take them down to the 103rd Precinct."

69) Later on that night Complainant Terrence Payne after being pressured by the police identified Plaintiff as the person whom had assaulted him.

70) Plaintiff was arraigned on October 27th, 2012, and he was given 250, 000 dollars bail, which was lowered to 100,000 dollars cash or 75,000 dollars bond. Plaintiff was remanded to the Boat. That is where he remained until November 7th, 2012, when the Captain informed him that the charges were dismissed and he was being released. Plaintiff later found out that charges were dismissed because Complainant recanted his statement.

71) That the Defendants, its agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that they carelessly, recklessly and negligently arrested the Plaintiff without making a proper investigation; in that they were negligent, careless and reckless in the manner in which they operated, controlled and maintained their agents, servants, and employees; and in that the Defendants, their agents, employees and servants were otherwise negligent, careless, and reckless.

72) That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body these from, were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and employees without any negligence on the part of the Plaintiff.

73) That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAIQUAN WILSON
FOR MALICIOUS PROSECUTION:

74) The Plaintiff, **SHAIQUAN WILSON**, hereby incorporates by reference each and every preceding paragraph 1-73 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

75) That on or about October 25th, 2012, Plaintiff, **SHAIQUAN WILSON**, (Hereinafter "Plaintiff"), met up with his friends, Javon Morris and Darnell Anderseon on 164th Street and Jamaica Avenue.

76) They then proceeded to walk to the Kings Parks located on Jamaica between 150th and one 153rd Street to play basketball.

77) Plaintiff and friends were horse playing around on their way to the park. Once they arrived at the park they began walking towards the basketball court area.

78) Suddenly and without warning, approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

79) The police yelled for them to get down and Plaintiff and his friends immediately complied.

80) Plaintiff, not knowing why he was being asked to get down by the officers simply asked the police officers what they had done and the police responded by saying, "**SHUT UP**".

81) The polcie then drove Plaintiff along with Javon Wilson and Darnell Anderson

over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where the Complainant, Terrence Payne, stated that they(Plaintiffs and his friends) were not the guys that had assaulted and/or robbed him.

82) One Police Officer asked, "Should we take them back to the park and let them go," and another Police Officers responded by saying, "No take them down to the 103rd Precinct."

83) Later on that night Complainant, Terrence Payne, under pressure from the police identified Plaintiff as the person who had assaulted him.

84) Plaintiff was thereupon arraigned on October 27th, 2012, and remained in jail until November 7th 2012.

85) He was given a \$250,000.00 dollar bail which was later lowered to \$100,000.00 dollars cash over \$75,000 dollars bond. Plaintiff was thereupon remanded to the VCBC or the Boat prison. That is where he remained until November 7th, 2012, an additional 12 days when the Captain of the Boat/prison informed him that the charges were dismissed and he then and there free to go and was being released.

86) That Plaintiff was forced to attend several court appearance until his charges were dismissed.

87) Plaintiff later found out that charges were dismissed because the Complainant recanted his statement which he had earlier told the police that the Plaintiff and his buddies were not involved.

88) That by reason of the aforesaid unlawful and malicious prosecution and criminal charges and hearings, the Plaintiff was deprived of his liberty was subjected to great indignity, pain, humiliation, and great distress of mind and body and was help up to scorn and ridicule, was injured in character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said Plaintiff has been otherwise damaged.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAIQUAN WILSON
FOR NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS:

89) The Plaintiff, **SHAIQUAN WILSON**, hereby incorporates by reference each and every preceding paragraph 1-88 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

90) That on or about October 25th, 2012, Plaintiff, **SHAIQUAN WILSON**, (Hereinafter "Plaintiff"), met up with his friends, Javon Morris and Darnell Anderson on 164th Street and Jamaica Avenue.

91) They then proceeded to walk to the Kings Parks located on Jamaica between 150th and one 153rd Street to play basketball.

92) Plaintiff and friends were horse playing around on their way to the park. Once they arrived at the park, they began walking towards the basketball Court area.

93) Suddenly and without warning, approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

94) They yelled for them to get down and Plaintiff and his friends immediately

complied.

95) Plaintiff, not knowing why he was being asked to get down by the officers simply asked the police officers what they had done and the police responded by saying, **“SHUT UP”**.

96) They then drove Plaintiff along with Javon Wilson and Darnell Anderson over to
97) 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where the Complainant, Terrence Payne, stated that they(Plaintiffs and his friends) were not the guys that had assaulted.

98) One Police Officer asked, “Should we take them back to the park and let them go,” and another Police Officers responded by saying, “No take them down to the 103rd Precinct.”

99) Later on that night Complainant, Terrence Payne, under pressure from the police identified Plaintiff as the person who had assaulted him.

100) Plaintiff was thereupon arraigned on October 27th, 2012, and he was given \$250, 000 dollar bail which was later lowered to \$100,000 dollars cash over \$75,000 dollars bond. Plaintiff was thereupon remanded to the VCBC or the Boat prison. That is where he remained until November 7th, 2012, an additional 12 days when the Captain of the Boat/prison informed him that the charges were dismissed and he then and there free to go and was being released.

101) Plaintiff later found out that charges were dismissed because the Complainant recanted his false statement that the police made him swear to that he observed Plaintiff commit the crime.

102) In fact, when Plaintiff recanted this false story, he told the police the truth which

103) is what he had earlier told the police that the Plaintiff and his buddies were not involved a statement he first gave the police.

104) That due to defendants' negligent and reckless conduct of forcing the Complainant to lie under oath by stating that Plaintiff was involved in a crime when he specifically told the police that they were not the persons who assaulted and/or robbed him was conduct that went beyond what could be considered acceptable, reasonable, and tolerable conduct in a civilized society and shocks the conscience of the ordinary citizen. Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

105) That due to defendants' conduct, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAIQUAN WILSON
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS:

106) The Plaintiff, **SHAIQUAN WILSON**, hereby incorporates by reference each and every preceding paragraph 1-105 of this Complaint as though fully plead and re-alleged in their entirety below.

107) That on or about October 25th, 2012, Plaintiff, **SHAIQUAN WILSON**, (Hereinafter "Plaintiff"), met up with his friends, Javon Morris and Darnell Anderson on 164th Street and Jamaica Avenue.

108) They then proceeded to walk to the Kings Parks located on Jamaica between 150th and

one 153rd Street to play basketball. Plaintiff and friends were horse playing around on their way to the park. Once they arrived at the park, they began walking towards the basketball Court area.

109) Suddenly and without warning, approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

110) They yelled for them to get down and Plaintiff and his friends immediately complied.

111) Plaintiff, not knowing why he was being asked to get down by the officers simply asked the police officers what they had done and the police responded by saying, **“SHUT UP”**.

112) They then drove Plaintiff along with Javon Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where the Complainant, Terrence Payne, stated that they(Plaintiffs and his friends) were not the guys that had assaulted.

113) One Police Officer asked, “Should we take them back to the park and let them Go?”

114) Another Police Officer responded by saying, “No take them down to the 103rd Precinct.”

115) Later on that night Complainant, Terrence Payne, under pressure from the police identified Plaintiff as the person who had assaulted him.

116) Plaintiff was thereupon arraigned on October 27th, 2012, and he was given

\$250, 000 dollar bail which was later lowered to \$100,000 dollars cash over \$75,000 dollars bond. Plaintiff was thereupon remanded to the VCBC or the Boat prison. That is where he remained until November 7th, 2012, an additional 12 days when the Captain of the Boat/prison informed him that the charges were dismissed and he then and there free to go and was being released.

117) Plaintiff later found out that charges were dismissed because the Complainant recanted his false statement that the police made him swear to that he observed Plaintiff commit the crime.

118) In fact, when Plaintiff recanted this false story, he told the police the truth which 89) is what he had earlier told the police that the Plaintiff and his buddies were not involved a statement he first gave the police.

119) That due to defendants' Intentional and reckless conduct of forcing the Complainant to lie under oath by stating that Plaintiff was involved in a crime when he specifically told the police that they were not the persons who assaulted him was conduct that went beyond what could be considered acceptable, reasonable, and tolerable conduct in a civilized society and shocks the conscience of the ordinary citizen. Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

90) That due to defendants' conduct, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

120) That due to defendants' intentional and reckless conduct of failing to ascertain if Plaintiff was in any way connected to the store or worked for the store as these officers did not observe Plaintiff break any law, they nevertheless arrested him. That this arrest went beyond what would be considered reasonable and tolerable in a civilized society and shocks the conscience of the ordinary citizen. Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

**AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAIQUAN WILSON
FOR CIVIL RIGHT ACTION 42 USC §1983:**

121) The Plaintiff, SHAIQUAN WILSON, hereby incorporates by reference each and every preceding paragraph 1 through 120 of this Complaint as though fully plead and re-alleged in their entirety below.

Venue and Jurisdiction

122) The jurisdiction is founded upon the existence of a Federal Question.

123) That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. § 1983, 1981, 1985 (3)) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.

124) That Jurisdiction is founded upon U.S.C § 1331 and § 1343 (3) and

(4), this being an action authorized by law to redress the deprivation under the color of statute, ordinance, regulation, custom or usage of a right, privilege, and immunity secured to the Plaintiff by the First, Fourth, and Fourteenth amendments to the Constitution of the United States (42 USC § 1983, 1981, 1985 (3), 1988) and arising under the federal constitutional laws and statutes as well as the laws, statutes, and constitution of the State of New York.

125) The amount in controversy exceeds, exclusive of interest and costs is \$75,000, the jurisdictional limits of this and any other court having jurisdiction.

126) The Police were specifically told by the Complainant during the initial identification procedure that the Plaintiff and his friends were definitely not the persons who assaulted him.

127) Nevertheless, the police made the Complainant falsely swear that the Plaintiff was in fact the person who had assaulted him so that they did not have to redo their paper work and expend police resources looking for the real culprit although they were aware that the Plaintiff did not commit any illegal acts, either before or at the time he was falsely arrested and imprisoned and later on being maliciously prosecuted and deprived of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § §1981, 1983, 1985(3), & 1988 and the Constitution of the State of New York.

128) That on or about October 25th, 2012, Plaintiff, **SHAIQUAN WILSON**, (Hereinafter "Plaintiff"), met up with his friends, Javon Morris and Darnell Anderseon on 164th Street and Jamaica Avenue.

129) They then proceeded to walk to the Kings Parks located on Jamaica between 150th and one 153rd Street to play basketball.

130) Plaintiff and friends were horse playing around on their way to the park. Once they arrived at the park they began walking towards the basketball court area.

131) Suddenly and without warning, approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

132) They yelled for them to get down and Plaintiff and his friends immediately complied.

133) Plaintiff, not knowing why he was being asked to get down by the officers simply asked the police officers what they had done and the police responded by saying, "**SHUT UP**".

134) They then drove Plaintiff along with Javon Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where the Complainant, Terrence Payne, stated that they(Plaintiffs and his friends) were not the guys that had assaulted and/or robbed him.

135) One Police Officer asked, "Should we take them back to the park and let them go," and another Police Officer responded by saying, "No take them down to the 103rd Precinct."

136) Later on that night Complainant, Terrence Payne, under pressure from the police identified Plaintiff as the person who had assaulted him.

137) Plaintiff was thereupon arraigned on October 27th, 2012, and he was given a \$250, 000 dollar bail which was later lowered to \$100,000 dollars cash over \$75,000 dollars bond. Plaintiff was thereupon remanded to the VCBC or the Boat prison. That is where he remained until November 7th, 2012, an additional 12 days when the Captain of the Boat/prison informed him that the charges were dismissed and he then and there free to go and was being released.

138) Plaintiff later found out that charges were dismissed because the Complainant recanted

his statement which he had earlier told the police that the Plaintiff and his buddies were not involved.

139) The Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees causing the Plaintiff to spend almost two (2) weeks in prison needlessly for a crime the police Defendants were well aware he did not commit.

140) That on or about October 25th, 2012, Plaintiff, **SHAIQUAN WILSON** (Hereinafter “Plaintiff”), met up with, Javon Morris and Darnell Anderseon on 164th Street and Jamaica Avenue.

141) They then proceeded to walk to Kings Parks located on Jamaica between 150th and one 153rd Street to play basketball.

142) Plaintiff and friends was horse playing around on their way to the park. Once the police arrived at the park they began walking towards the basketball court area.

143) Approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

144) They yelled for them to get down, they complied. Plaintiff asked the officers what they had done and the police responded by saying, “**SHUT UP**”.

145) The police then drove Plaintiff along with Javon Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where Complainant Terrence Payne stated that they were not the guys that had assaulted him just as he told them the first time around.

146) One Police Officer asked, "Should we take them back to the park and let them go," and Another Police Officer responded by saying, "No take them down to the 103rd Precinct."

147) Later on that night, Complainant Terrence Payne after being pressured by the police identified Plaintiff as the person whom had assaulted him.

148) Plaintiff was arraigned on October 27th, 2012, and he was given 250, 000 dollars bail, which was lowered to \$100,000.00 dollars cash or \$75,00.00 dollars bond. Plaintiff was remanded to the Boat. That is where he remained until November 7th, 2012, when the Captain informed him that the charges were dismissed and he was being released. Plaintiff later found out that charges were dismissed because Complainant recanted his statement.

149) That the Defendants, its agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that they carelessly, recklessly and negligently arrested the Plaintiff without making a proper investigation; in that they were negligent, careless and reckless in the manner in which they operated, controlled and maintained their agents, servants, and employees; and in that the Defendants, their agents, employees and servants were otherwise negligent, careless, and reckless.

150) Such deprivation were in violation of the rights secured to Plaintiff by the Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U.S.C.A. § 1983 and the laws, ordinances and statues of the State of New York to wit:

- a. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.
- b. Defendant acted pursuant to an official policy even though unwritten that they understood authorized them to pursue to conduct warrantless searches of premises without a warrant, without probable cause, and without justification because such conduct was condoned by the NYPD.
- c. The arrest and imprisonment was not justified by probable cause or other legal privilege; Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.
- d. That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees
- e. That Defendants, their agents, servants and employees is in their failure to enforce the laws of the state of New York did act with reckless disregard to Plaintiff's rights in that they did not exercise that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants.
- f. That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in the exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously and with such reckless disregard

for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the state of New York including Plaintiff.

- g. That the acts of the Defendants, their agents, servants and employees relative in failing to properly discipline, hire and train their employees, agents and servants is a presents a clear and present danger to the citizens of the City and State of New York.

151) As a result of the aforesaid Defendants' deprivation of Plaintiff's civil rights, Plaintiff has been damaged in the sum exceeds the Jurisdictional limits of all lower courts.

152) The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.

153) The arrest and imprisonment was not justified by probable cause or other legal privilege or grounds. Defendants their agents, servants and employees, acting under the color of law and under authority of their office as Police Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.

154) That by their wanton conduct, Defendants showed a blatant disregard for Plaintiff's constitutional rights.

155) That the Plaintiff demands attorney fees should he prevail in his 42 USC Section 1983 claims against the individually named police officers and **CITY OF NEW YORK.**

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SHAIQUAN WILSON
CIVIL RIGHTS ACTION 42 USC §§ 1985(3):

156) The Plaintiff, **SHAIQUAN WILSON**, hereby incorporates by reference each and every preceding paragraph 1-155 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

157) That on or about October 25th, 2012, Plaintiff, **SHAIQUAN WILSON who was a black teenage male** (Hereinafter “Plaintiff”), met up with, Javon Morris and Darnell Anderson (also black teenagers) on 164th Street and Jamaica Avenue.

158) That the police falsely conspired to arrest them by pressuring a complainant to identify Plaintiff although this person told the police that he was not involved in assaulting him.

159) This type of racially discriminatory conduct is routine by the City of New York who fail to discipline its police officers when they engage in such conduct.

160) That as mentioned above, Plaintiff and his friends proceeded to walk to the Kings Parks located on Jamaica between 150th and one 153rd Street to play basketball.

161) Plaintiff and friends were horse playing around on their way to the park. Once the arrived at the park they began walking towards the basketball court area.

162) Suddenly and without warning, approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

163) They yelled for them to get down and Plaintiff and his friends immediately complied.

164) Plaintiff, not knowing why he was being asked to get down by the officers simply asked the police officers what they had done and the police responded by saying, “**SHUT UP**”.

165) They then drove Plaintiff along with Javon Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where the Complainant, Terrence Payne, stated that they(Plaintiffs and his friends) were not the guys that had assaulted and/or robbed him.

166) One Police Officer asked, "Should we take them back to the park and let them go," and another Police Officers responded by saying, "No take them down to the 103rd Precinct."

167) Later on that night Complainant, Terrence Payne, under pressure from the polic identified Plaintiff as the person who had assaulted him.

168) Plaintiff was thereupon arraigned on October 27th, 2012, and he was given a \$250, 000 dollar bail which was later lowered to \$100,000 dollars cash over \$75,000 dollars bond. Plaintiff was thereupon remanded to the VCBC or the Boat prison. That is where he remained until November 7th, 2012, an additional 12 days when the Captain of the Boat/prison informed him that the charges were dismissed and he then and there free to go and was being released.

169) Plaintiff later found out that charges were dismissed because the Complainant recanted his statement which he had earlier told the police that the Plaintiff and his buddies were not involved.

170) The Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees causing the Plaintiff to spend almost two (2) weeks in prison needlessly for a crime the police Defendants were well aware he did not commit.

171) The Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested by White and Hispanic Police officers who conspired to falsely arrest and imprison him which deprived him of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC §§ 1985(3) and the Constitution of the State of new York.

172) That at all times hereinafter mentioned , the Defendants Police Officers

JOHN/JANE DOES 1-50 each of them, separately and in concert conspired for the purpose of depriving, either directly or indirectly, Plaintiff of the equal protection of the laws, or of equal privileges and immunities under the laws in that said Defendants did engage in the illegal conduct hereinbefore described and thus did deprive the Plaintiff of the equal protection of the laws, or of equal privileges and immunities secured to Plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the Laws of the United States. The unlawful and illegal conduct of the Defendants deprived the Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and the State of New York:

- a. The right of the Plaintiff to be secure in their persons and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments of the Constitution of the United States
- b. the right of the Plaintiff to be informed of the nature and cause of the accusation against him so secured to them under the sixth and fourteenth amendments of the Constitution of the United States; and,
- c. the right of the Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the law secured by the Fourteenth Amendment to the Constitution of the United States.

173) That by reason of the aforesaid violations, conspiracy and false arrest, and false imprisonment, and battery and otherwise discriminatory treatment in violation of both the United States and New York State Constitutions, the Defendants conspired together to enter into a nefarious scheme to wrongfully deprive the Plaintiff and compelled him to abandon his rights and privileges as provided to him in the Constitutional rights as set forth in the Constitution of

the State of New York, and laws thereto, the Defendants, violated 42 U.S.C. §§ 1981, 1983, 1985 (3) in that the Defendants acted as persons who under color of any statute, ordinance, regulation, custom or usage of the **CITY OF NEW YORK**, subjected or caused to be subjected, a citizen of the United States or other person within the jurisdiction, particularly the Plaintiff thereof to be deprived of his rights, privileges or immunities received by Constitution of the United States of America, and provided them by the Constitution of the State of New York; were subjected to Great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging the Plaintiff.

174) That by reason of the aforesaid violations, to wit the false arrest, false imprisonment caused by the Defendants, who wrongfully deprived the Plaintiff and compel his abandon his rights and privileges as provided to his in the Constitution of the United States of America, and in the Constitution of the United States of America, and in the Constitution of the State of New York, and laws thereto, the Defendants, acting within the scope of their authority and without any probable cause, caused the Plaintiff great harm because of the aforesaid illegal conduct.

AS AND FOR THE NINTH CAUSE OF ACTION
ON BEHALF OF SHAIQUAN WILSON
FOR ATTORNEY FEES PURUSANT TO 42 USC SECTION 1988:

175) The Plaintiff, **SHAIQUAN WILSON**, hereby incorporates by reference each and every preceding paragraph 1-74 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

176) That should Plaintiff be successful on his 1983 and other federal claims, he will seek attorney fees against these Defendants and the City of New York.

AS AND FOR THE TENTH CAUSE OF ACTION
ON BEHALF OF SHAIQUAN WILSON
FOR RACIAL DISCRIMINATION PURSUANT TO 42 USC SECTION 1981:

177) The Plaintiff, **SHAIQUAN WILSON**, hereby incorporates by reference each and every preceding paragraph 1-176 of this Complaint as though fully plead and re-alleged in their entirety below.

178) That on or about October 25th, 2012, Plaintiff, **SHAIQUAN WILSON**,
(Hereinafter
“Plaintiff”), met up with his friends, Javon Morris and Darnell Anderseon on 164th Street and Jamaica Avenue.

179) They then proceeded to walk to the Kings Parks located on Jamaica between 150th and one 153rd Street to play basketball.

180) Plaintiff and friends were horse playing around on their way to the park. Once they arrived at the park they began walking towards the basketball court area.

181) Suddenly and without warning, approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

182) They yelled for them to get down and Plaintiff and his friends immediately complied.

183) Plaintiff, not knowing why he was being asked to get down by the officers simply asked the police officers what they had done and the police responded by saying, “**SHUT UP**”.

184) They then drove Plaintiff along with Javon Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where the Complainant, Terrence Payne, stated that they(Plaintiffs and his friends) were not the guys that had assaulted and/or robbed him.

185) One Police Officer asked, "Should we take them back to the park and let them go," and another Police Officers responded by saying, "No take them down to the 103rd Precinct."

186) Later on that night Complainant, Terrence Payne, under pressure from the police identified Plaintiff as the person who had assaulted him.

187) Plaintiff was thereupon arraigned on October 27th, 2012, and he was given a \$250, 000 dollar bail which was later lowered to \$100,000 dollars cash over \$75,000 dollars bond. Plaintiff was thereupon remanded to the VCBC or the Boat prison. That is where he remained until November 7th, 2012, an additional 12 days when the Captain of the Boat/prison informed him that the charges were dismissed and he then and there free to go and was being released.

188) Plaintiff later found out that charges were dismissed because the Complainant recanted his statement which he had earlier told the police that the Plaintiff and his buddies were not involved.

189) The Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees causing the Plaintiff to spend almost two (2) weeks in prison needlessly for a crime the police Defendants were well aware he did not commit.

190) That on or about October 25th, 2012, Plaintiff, **SHAIQUAN WILSON**

(Hereinafter "Plaintiff"), met up with, Javon Morris and Darnell Anderseon on 164th Street and Jamaica Avenue.

191) They then proceeded to walk to Kings Parks located on Jamaica between 150th and one 153rd Street to play basketball.

192) Plaintiff and friends was horse playing around on their way to the park. Once the police arrived at the park they began walking towards the basketball court area.

193) Approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

194) They yelled for them to get down, they complied. Plaintiff asked the officers what they had done and the police responded by saying, "**SHUT UP**".

195) The police then drove Plaintiff along with Javon Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where Complainant Terrence Payne stated that they were not the guys that had assaulted him just as he told them the first time around.

196) One Police Officer asked, "Should we take them back to the park and let them go," and another Police Officer responded by saying, "No take them down to the 103rd Precinct."

197) Later on that night Complainant Terrence Payne after being pressured by the police identified Plaintiff as the person whom had assaulted him.

198) Plaintiff was arraigned on October 27th, 2012, and he was given 250, 000 dollars bail, which was

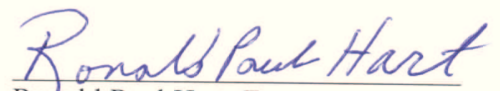
lowered to 100,000 dollars cash or 75,000 dollars bond. Plaintiff was remanded to the Boat. That is where he remained until November 7th, 2012, when the Captain informed him that the charges were dismissed and he was being released. Plaintiff later found out that charges were dismissed because Complainant recanted his statement.

199) That the Defendants, its agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that they carelessly, recklessly and negligently arrested the Plaintiff without making a proper investigation; in that they were negligent, careless and reckless in the manner in which they operated, controlled and maintained their agents, servants, and employees; and in that the Defendants, their agents, employees and servants were otherwise negligent, careless, and reckless.

200) That by reason of the aforesaid violations, the Plaintiff requests the following relief:

- a. Compensatory damages in the sum which exceeds the jurisdictional limits of all lower courts on all causes of action.
- b. Punitive damages in the sum which exceeds the jurisdictional limits of all lower courts as against the individually named Defendants.
- c. An award of reasonable attorney's fees, costs and disbursements;
- d. Plaintiff requests a trial by jury of all issues involved in this complaint;
- e. Such other and further relief as this Court may deem just, meet and proper under the circumstances.

Dated: New York, NY 10007
May 6th 2013



Ronald Paul Hart, Esq.
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New York, NY 10007
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Fax: (212) 766-0943
Email: ronaldphartesq@gmail.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

SHAIQUAN WILSON

Plaintiff,

-against-

**Index No:
Summons and Complaint**

**THE CITY OF NEW YORK, POLICE OFFICER
GASPERETTI OF PATROL BORO QUEENS SOUTH,
TAX REG#: 950480, POLICE OFFICER JASON
BERNFELD OF PATROL BORO QUEENS SOUTH,
TAX REG#: 950074 POLICE COMMISSIONER
RAYMOND KELLY, AND POLICE OFFICER
JOHN AND/OR JANE DOE NUMBERS 1-50
Defendants.**

RONALD PAUL HART, ESQ.
Attorney(s) for the PLAINTIFF
225 Broadway Suite 2515
New York, New York 10007
Tel. (212)766-1443

**To: ALL COUNSEL
Attorney(s) for
THE DEFENDANTS:**

Service of a copy of the within SUMMONS AND COMPLAINT

Counselor(s): Please Take notice

NOTICE OF ENTRY

**that the within is a (certified) true copy of a
duly entered order in the office of the clerk of the within named court on**

NOTICE OF SETTLEMENT

**that an order for of which the within is a true copy will be presented for settlement to the
HON. one of the justices of the within named Court at the within is a (certified) true copy of
a duly entered**